

Pursuant to Local Rule 3118, this court requires that “parties represented by counsel must file documents electronically” in all limited and unlimited civil actions. Thus, Plaintiffs’ electronic filing fees are recoverable. However, the invoices provided by Plaintiffs to support the recovery of these fees show that \$180 of these fees were for filing fees, already recovered elsewhere. (See, Rotman Decl. at ¶ 5, Ex. 7.) Additionally, \$194.45 was incurred not for electronic filing, but for “Info Track Fees” [*ibid.*], which are not automatically recoverable. As Plaintiffs provide no evidence showing how these fees were reasonably necessary to the litigation, they fail to establish they are recoverable.

GM also challenges the \$150 in jury fees paid by Plaintiffs. Jury fees are proper on their face. (See C.C.P. § 1033.5(a)(1).) Although the present case did not go to trial, Plaintiffs were required to pay the jury fees in order to preserve the right to a jury trial in event the case did not settle. The jury fee must be paid on or before the date scheduled for the initial case management conference. (C.C.P. § 631(c).)

Fees for legal research are not recoverable under California law absent an agreement of the parties or statutory authority. (*Ladas, supra*, 19 Cal.App.4th at 776.) Such costs are part of attorney overhead and are not recoverable. Further, Plaintiffs fail to show that these fees were reasonable and necessary to the litigation.

Finally, GM challenges the \$680 sought by Plaintiffs for mediation fees. However, mediation fees are recoverable in the court’s discretion. (*Anthony v. Li* (2020) 47 Cal.App.5th 816, 824; C.C.P. 1033.5 (c)(4).) As Plaintiffs presents evidence those fees were incurred [Rotman Decl., Ex. 8], they are recoverable.

Defendant’s Motion to Tax Costs GRANTED in part.

The following the reductions in costs: \$374.45 electronic fees + \$625 court reporter fees + \$49.43 legal research for a total tax of \$1,048.88.

Costs awarded to Plaintiff in the amount of \$3,177.83 (\$4,226.71-1,048.88).

3.

CASE #	CASE NAME	HEARING NAME
CVPS2502070	VAN WINKLE VS COHEN	MOTION FOR SUMMARY JUDGMENT ON 1ST AMENDED COMPLAINT FOR OTHER PERSONAL INJURY/PROPERTY DAMAGE/WRONGFUL DEATH TORT (OVER \$35,000) OF ADRIAN VAN WINKLE BY MELISSA COHEN

Tentative Ruling: No tentative ruling. Motion is continued to 9.01.26.

If the opposing party shows by declaration that essential evidence “may exist but cannot, for reasons stated, be presented, the court shall deny the motion” or continue it for a reasonable period, or “make any other order as may be just.” (CCP § 437c(h); see *Bahl v. Bank of America* (2001) 89 Cal.App.4th 389, 395.) Thus, a continuance (normally a matter within the court’s discretion) is “virtually mandated” where the nonmoving party makes the requisite showing. The party need not show that essential evidence *does* exist, but only that it *may* exist. (*Dee v. Vintage Petroleum, Inc.* (2003) 106 CA4th 30, 34 (emphasis added).) To be entitled to a continuance, the party opposing the motion for

summary judgment must show that its proposed discovery will lead to facts essential to justify opposition. (*Scott v. CIBA Vision Corp.* (1995) 38 Cal.App.4th 307, 325-326.)

The opposing party's declaration in support of a motion to continue the hearing should show facts establishing a likelihood that controverting evidence may exist and why the information sought is essential to opposing the motion; the specific reasons why such evidence cannot be presented at the present time; an estimate of the time necessary to obtain such evidence; and the specific steps or procedures the opposing party intends to utilize to obtain such evidence. (CCP §437c(h); see *Granadino v. Wells Fargo Bank, N.A.* (2015) 236 Cal.App.4th 411, 420.)

Plaintiff provides the declaration of Attorney Samuel Hopkins. Hopkins asserts the outstanding discovery is directly relevant to the issues of whether Defendant had actual or constructive knowledge of dangerous conditions at the property, whether prior incidents or law enforcement activity made the subject shooting foreseeable, whether Defendant had the ability to take reasonable measures in response to conditions at the property, and whether Defendant acted reasonably. (Hopkins Decl. ¶¶11.) Hopkins states: "The less-redacted/unredacted law enforcement records, additional firearm-related records, and witness testimony are expected to yield evidence directly bearing on Defendant's claim that she lacked knowledge of any prior issues at the property." (Hopkins Decl. ¶¶11.) Hopkins contends Plaintiff has acted diligently in pursuing discovery, including propounding written discovery, obtaining the police records, requesting unredacted versions of those records, contacting the Sheriff's Department regarding the November 3, 2023 firearm-related event, and noticing Defendant's deposition. (Hopkins Decl. ¶¶13.) Hopkins does not provide an estimate of the time necessary to obtain all of the outstanding evidence but has provided the Notice of Defendant's Deposition (set for June 16, 2026) and demonstrated that Plaintiff is waiting on law enforcement to provide additional records.

Motion for Summary Judgment continued to 9.01.26 pursuant to CCP 437c(h).

Case Management Conference calendared for 6.30.26 is continued to 8.18.26. Plaintiff is directed to submit an updated Case Management Statement at least 10 days prior to the August 18th date, addressing the status of the outstanding discovery they believe is relevant to the Motion for Summary Judgment and provide a date for when that discovery will be completed if still pending at the time of submission of the Case Management Statement. Plaintiff to use pleading paper and not CM-110 for the updated statement.